IN RE MAKANAKA MAVHUTO
IN RE NYASHA CHAMBANI
IN RE JAYDEN MABHIZA

HIGH COURT OF ZIMBABWE
TSANGA J
HARARE, 26 MAY 2026

Civil Review

TSANGA J

These Children's Reviews were submitted by two different Magistrates for confirmation and they all share the common denominator of failure to fully populate the orders with all the required information as reflected on the form used for the final order in children's matters for placement in safe homes. There appears to be a casual attitude towards populating the details required on the final order. It is common for instance to find as in these cases that the date of the hearing has not been indicated on the final order itself as required by the inclusion of this field on the form. It is often taken for granted by Magistrates that the stamp at the bottom of the form suffices to cover the date of the hearing despite the form itself actually having a specific field for the date of the hearing.

Generally, the Magistrate's stamp at the foot of the order merely shows the date the order was issued, and serves to authenticate the order and indicate the date of issue, the Magistrate Court which issued the Order and not the hearing date itself. Where a form requires that the field be completed, it cannot and should not be, a substitute for an actual date when the matter was heard.

Whilst its omission is not fatal since the order indicates the date the order was issued or granted, and clearly states the case and its decision as well as bearing the court stamp, in an order placing a child in care, it is generally very important that the order clearly records the date the matter was heard. The insertion of a hearing date often serves several important purposes. It shows when the parties were heard, and confirms procedural regularity. It also creates a reliable court record. When the hearing date is left blank, it reflects poor judicial/administrative practice as opposed to a substantive defect affecting validity of the order itself. Still, whilst not fatal to the order itself, magistrates ought to bear in mind that

child-care and custody proceedings affect fundamental rights and the welfare of the child, so courts are expected to keep a clear and complete record showing when the hearing occurred, and what decision was made, and when the order was issued. Omission of the hearing date can also matter because it may affect proof that relevant parties were properly heard. It is for such reasons why children's matters usually require strict procedural compliance and why proper record keeping is essential.

I thought that I should emphasise these points in a brief judgment for wider reach to Magistrates and to annihilate the practice of lack of attention to detail that is observable in these placement proceedings.

Accordingly, I am re-directing these reviews back to the Magistrate concerned for proper population of the details on the requisite form. The Chief Magistrate is also directed to circulate amongst magistrates.

TSANGA J……